Legal background of heritage protection in Ireland

Protection for the archaeological heritage in Ireland is a product of both legislation and interpretative policy. It has developed over time, reflecting external factors such as the ratification of the Valetta Convention by Ireland in 1998 and European Court of Justice decisions and reflecting internal factors like important Irish court decisions (Keane, 2015). Policy in relation to the archaeological heritage is articulated in two seminal published documents (DAGHI, 1999a and b).

- Framework and Principles for the Protection of the Archaeological Heritage
- Policy and Guidelines on Archaeological Excavations

In terms of levels of protection, in the National Monuments Acts (1930-2014) provided two broad grades: an ordinary level for monuments included in the Record of Monuments and Places and an enhanced level for monuments of national significance in the Ownership and Guardianship of the Minister or Local Authority or those covered by a preservation order. Monuments of national significance include those monuments or the remains of a monument, the preservation of which is a matter of national importance by reason of the historical, architectural, traditional, artistic or archaeological interest attaching thereto (National Monuments Act 1930, Section 2).

The National Monuments Act and Amendments thereof (1930-2014) have recently been replaced by the Historic and Archaeological Heritage and Miscellaneous Provisions Act (HAHMP Act) of 2023. Large portions of the Act remain to be commenced but the new law is on the statute books and will be enacted over the coming years. The HAHMP Act completely replaces rather than consolidates the previous legislation, however some of the fundamental aspects of the previous suite are mirrored in the new Act but there are important differences.

The new legislation (HAHMP Act) specifies general and special levels of protection to monuments entered into a new Register: this is a single Register, with varying levels of protection. A suite of factors must be reviewed when determining if an entry into the Register is merited, for example, the level of archaeological interest, the physical integrity of the monument, the likelihood of protection in situ or the extent to which a monument or thing is already subject to protection under another enactment. The latter can relate to buildings of architectural interest which are Protected Structures under the Planning and Development Acts.

The Act contains a key provision relating to proposals for works to be carried out at or on a monument to which general protection applies. Either a licence is needed to conduct any works, or a notification procedure must be completed. Once a notice has been sent, the Minister must consider whether the registered monument in question requires special protection. If special protection is decided upon, then anyone wishing to carry out, or direct or authorise the carrying out of works at that monument, then a licence is required.

In considering whether to apply or cease to apply special protection, the Minister must review a number of criteria specified under the Act, namely, the interest, character, integrity or amenity value of the monument in terms of its archaeological, architectural or historic heritage, taking into account whether the monument is, in terms of such heritage, of special or particular interest, character, integrity or amenity value, whether at a local, regional, national or international level. (Chapter 4, Section 20, (3))

In some cases – where a monument is a national monument, a wreck 100 or more years old, or a monument in the guardianship of the Minister or a local authority – it cannot be decided that special protection ceases to apply.

The Act also allows consideration of the significance of a monument at several important junctures, the first is to what classes of monument automatic protection is applied. These are 'prescribed' monuments – general protection applies to all such classes notwithstanding their entry or otherwise into the Register. Secondly when including a monument in the Register, the Minister shall consider whether general or special protection applies or should apply. Thirdly when notice has been sent to the Minister of a proposal to carry out works to or at a monument, the Minister must then review whether that monument should attract general or special protection.

Assessment of significance- methods

For the Waterford site, part of the focus of the assessment was a detailed examination of the party wall between the existing retail premises and the proposed extension area (Fig.57). Archaeological

Figure 57: View of the archaeological site from the East, showing the protected town wall on the right. (Dave Pollock).

Figure 58: Burials in the cloister walk of the medieval priory. (Dave Pollock).

policy in Ireland (DAHGI 1999a) provides for "that the particular benefits to the community of the continued existence of archaeological monuments with visible above ground features should always be a consideration and only the most compelling reasons can justify the removal of such monuments. The question of the fabric and antiquity of the party wall earmarked for demolition was in question, and the request for further information required stripping back and recording of the party wall which being of 18th and 19th century date was deemed to have little archaeological significance.

The focus of Irish policy, particularly in relation to development in historic towns within urban areas is as follows:

> Every effort should be made to secure the preservation in-situ of surviving upstanding features or structures of archaeological interest located in historic towns, in particular town walls, all medieval and seventeenth century buildings or remains of such, and post 1700 AD buildings which are of archaeological interest.

This policy was reinforced in 2008 with the publication of a specific policy document 'National Policy on Town Defences' (Department of Environment, Heritage and Local Government 2008). This enhanced framework professed that all town defences were to be considered a single National Monument treated as a unit for policy and management purposes with a presumption in favour of the preservation in situ of archaeological remains and the preservation of their character, setting and amenity. Although this policy document was published after planning permission had been granted, in 2006, the planning decision, which was written by An Bord Pleanála (ABP) contained many of the precepts which were to be encapsulated in the National Policy on Town Defences. It set out the conditions for the preservation of the town wall and conditions for its context within the development, providing that the town wall be set within a void in the floor slab *"to ensure that this feature of national importance is properly treated and displayed to the public in compliance with the provisions of the currently development plan for the area."* The nature of the town wall as a national monument[23] and the public benefit provided by its conservation and presentation to the public is clearly articulated within the planning decision, prompted by the recommendations of the National Monuments Service.

[23]"The expression "national monument" means a monument or the remains of a monument the preservation of which is a matter of national importance by reason of the historical, architectural, traditional, artistic, or archaeological interest attaching thereto and also includes (but not so as to limit, extend or otherwise influence the construction of the foregoing general definition) every monument in Saorstát Eireann to which the Ancient Monuments Protection Act, 1882, applied immediately before the passing of this Act, and the said expression shall be construed as including, in addition to the monument itself, the site of the monument and the means of access thereto and also such portion of land adjoining such site as may be required to fence, cover in, or otherwise preserve from injury the monument or to preserve the amenities thereof" (National Monuments Act 1930 Section 2).

In relation to the upstanding monuments within this development site, decision making relating to their significance, followed explicit national policy articulated firstly in Framework and Principles for the protection of the archaeological heritage (DAHGI 1999a), secondly in terms of the objectives and policies of the Waterford City development plan, concepts which were articulated more expansively subsequently in the National Policy on Town Defences.

The buried deposits on the development site also posed questions in terms of their significance and subsequent treatment prior to construction. These included a pre-town wall clay bank, the external ditch associated with that bank and town wall, a tower base marking the corner of the medieval city wall, as well as burials and building remains associated with the Dominican priory and earlier occupation (Fig.58). The potential impacts of the proposed development on these deposits and structures was dependent on the type of foundations to be used, the proposed finished floor level and the depth and location of lifts, escalator wells, and service trenches.

Once the nature of the upstanding wall on site was established, Ministerial consent was required for any more excavation in proximity to this structure. Thus a programme of archaeological investigation followed – under the relevant consents – across the demolished Egan's Pub and then within the large retail area. The development was then able to proceed, taking into account the decision-making required by the archaeological discoveries (Fig.59). This case study thus shows that some of the decisions and selections were made according to explicit legal and policy requirements, whereas some were based on factors specific to the site itself.

Figure 59: Section of the preserved town wall on display within the new retail premises. (Dave Pollock).